

		Plaintiff to give notice.
14	Krishnamoorthy vs. The Irvine Company, LLC	<u>Motion for Summary Judgment and/or Adjudication</u> The hearing on this motion was continued from 8/14/26, to permit the parties to lodge surveillance footage referenced in their respective filings. (See 8/14/26 Minute Order.) The parties thereafter filed lodged copies of the surveillance footage (See ROAs 202 and 206), which this court has considered. The court DENIES Defendants THE IRVINE COMPANY LLC, IRVINE PARK WEST APARTMENTS LLC, and IRVINE MANAGEMENT COMPANY's (collectively, "Defendants") motion for summary judgment, and their alternative motion for summary adjudication directed at the Complaint filed by Plaintiffs RAMACHANDRAN KRISHNAMOORTHY and MAHESWARI RAMACHANDRAN. The Complaint asserts two causes of action arising against Defendants: (1) negligence/wrongful death and (2) premises liability/wrongful death. <u>Evidentiary Objections</u> The court OVERRULES Defendants' Objection Nos. 1–7 to the Declaration of Trevor A. Sherwood II. As to Objection No. 1, although the copy initially submitted with Plaintiffs' opposition did not bear a signature, Plaintiffs subsequently filed an executed declaration, curing the procedural defect. (Peabody Jr. Decl., ¶¶ 3-4, Exh. 8 [ROA 189]. See <i>Walton v. Victor Valley Community College Dist.</i> (2026) 119 Cal.App.5th 1164, 1170–1171 [accepting untimely corrected declaration, noting "A court should be cautious about granting summary judgment 'based on a curable procedural default, which deprives the opposing party of a decision on the merits' [citation] In the event of such defect, the 'proper response' is to grant an opportunity to cure so the motion can be resolve don the merits. [Citation].".]) The court OVERRULES Defendants' Objection Nos. 8–12 to the Declaration of Boyce Oandasan.